Strictly private and confidential

MERCHANT AGREEMENT

This Merchant Agreement ("**Agreement**") is between you company/individual/firm/partnership/body corporate), together with any company or other business entity you are representing, if any (hereinafter collectively referred as "**Merchant**" or "**you**" or "**User**"); and **Prosavvy Luxuries Pvt. Limited**, a company registered under the Companies Act, 1956, having its registered office at A -30, Ground Floor, Paschim Vihar-110063, offering 'Logistics Management Services', under the name '**Shipzee**' (hereinafter referred to as "**Shipzee"** or "**we**" or "**Company**", and together with the User referred jointly as the "**Parties**" and individually as a "**Party**"). Shipzee and the Merchant are hereinafter collectively be referred to as "Parties" and individually as "Party".

WHEREAS:

(A) Shipee is inter-alia engaged in the business of providing logistics management services through its Logistics Partners *(defined later)* which includes but is not limited to automated shipping, returns and refunds, product tracking and notification services ("**Services**").

(B) The Merchant has approached Shipzee for obtaining, and Shipzee wishes to provide, the Services through its Application *(as defined herein under)*.

(C) The Parties are therefore entering into this Agreement in order to record the terms of their engagement and terms and conditions under which the Merchant shall be allowed to use Shipzee Services through its Application.

This Agreement comes into effect when you register to use the Services (*as defined below*), or click on "**Continue**" box, and accept the terms and conditions provided herein. You are advised to read this Agreement carefully. You expressly represent and warrant that you will not avail the Services if you do not understand, agree to become a party to, and abide by all of the terms and conditions specified below. Any violation of this Agreement may result in legal liability upon you.

This Agreement is an electronic record in terms of Information Technology Act, 2000 and generated by a computer system, and does not require any physical or digital signatures. This Agreement is published in accordance with the provisions of Rule 3(1) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing of the rules and regulations, privacy policy and terms of usage for access or usage of the website/ service.

SHIPZEE reserves the right to modify the terms of this Agreement, at any time, without giving you any prior notice. Your use of the Service following any such modification constitutes your agreement to follow and be bound by the terms of the Agreement, as modified.

You agree that any information you give to SHIPZEE will always be true, accurate, correct, complete and up to date, to the best of your knowledge. Any phone number used to register with the Service be registered in your name and you might be asked to provide supporting documents to prove the same.

1. DEFINITIONS AND INTERPRETATIONS

1.1. Definitions: In this Agreement, including in the recitals hereof, the following words, expressions and abbreviations shall have the following meanings, unless the context otherwise requires:

(a) "**Agreement**" means this Agreement, all Annexures hereto and all standard operating procedures (**SOPs**) and service level agreements (**SLAs**) issued pursuant to this Agreement.

(b) **"Applicable Law(s)"** means any applicable law, rule, regulation, ordinance, order, treaty, judgment, notification, decree, bye-law, governmental approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law and shall include any of the foregoing, injunction, permit or decision of any central, state or local, municipal government, authority, agency, court having jurisdiction over the matter in question.

(c) "**Confidential Information**" means, with respect to each Party, any information or trade secrets, schedules, business plans including, without limitation, commercial information, financial projections, client information, administrative and/or organizational matters of a confidential/secret nature in whatever form which is acquired by, or disclosed to, the other Party pursuant to this Agreement, and includes any tangible or intangible non-public information that is marked or otherwise designated as 'confidential', 'proprietary', 'restricted', or with a similar designation by the disclosing Party at the time of its disclosure to the other Party, or is otherwise reasonably understood to be confidential by the circumstances surrounding its disclosure, but excludes information which:

(i) is required to be disclosed in a judicial or administrative proceeding, or is otherwise requested or required to be disclosed pursuant to applicable law or regulation, and (ii) which at the time it is so acquired or disclosed, is already in the public domain or becomes so other than by reason of any breach or non-performance by the other Party of any of the provisions of this Agreement;

(d) "**Customer**" means the end consumer of Merchants to whom the Merchant goods / products are being delivered by Shipzee through its Logistics Partner.

(e) "**Force Majeure Event**" includes act of God, war, civil disturbance, strike, lockout, act of terrorism, flood, fire, explosion, epidemic / pandemic or legislation or restriction by any government or other authority, or any other similar circumstance beyond the control of any Party, which has the effect of wholly or partially suspending the obligations hereunder of the Party concerned; and

(f) "**Intellectual Property**" means any patent, copyright, trademark, trade name, service mark, service name, brand mark, brand name, logo, corporate name, domain name, industrial design, any registrations and pending applications thereof, any other intellectual property right (including without limitation any know-how, trade secret, trade right, formula, computer program, software, database and data right) and any goodwill associated with the business.

(g) "**Logistic Partner**" means third-party courier partners handling the delivery and shipments of Merchant goods/products to the Customers on behalf of the Merchant, and collecting the Products from the Customer's doorstep for and on behalf of Merchant, in case of return of the goods/products, and delivering them to the Merchant, subject to the terms and conditions of this Agreement.

(h) "Platform" shall mean the logistics software hosted on www.shipzee.tech and/or 'Shipzee' mobile application, providing its users an automated shipping panel service integrated with the Logistic Partners.

1.2. Interpretation: Unless the context of this Agreement otherwise requires:

(a) Words using the singular or plural number also include the plural or singular number, respectively.

(b) Reference to the word "include" or "including" shall be construed without limitation.

(c) Reference to this Agreement shall be deemed to include any amendments or modifications to this Agreement, as the case may be.

(d) Reference to an "amendment" includes a supplement, modification, novation, replacement or re- enactment and "amended" is to be construed accordingly.

(e) Reference to a particular section, clause, paragraph, sub-paragraph or schedule, exhibit or annexure shall be a reference to that section, clause, paragraph, sub- paragraph or schedule, exhibit or annexure in or to this Agreement.

(f) An "authorization" includes an authorization, consent, clearance, approval, permission, resolution, license, exemption, filing and registration.

(g) The headings and bold typeface in this Agreement are inserted for convenience of reference only and are to be ignored in construing and interpreting this Agreement.

(h) The words 'hereof', 'herein', and 'hereto' and words of similar import when used with reference to a specific clause or sub-clause in this Agreement shall refer to such clause or sub-clause in this

Agreement and when used otherwise than in connection with specific clauses, sub-clauses shall refer to this Agreement as a whole.

(i) Any provision of this Agreement must not be interpreted against any Party solely on the ground that the Party was responsible for the preparation of this Agreement or that provision.

(j) any additional terms and conditions, standard operating procedures (SOPs), service-level agreements (SLAs), terms of use, disclaimers and other policies applicable to general and specific areas of this Agreement, Application, and/or Service shall be construed to form an integral part of this Agreement and any breach thereof will be construed as a breach of this Agreement.

(k) Reference to any law shall be deemed to include any bye-laws, licenses, statutory instruments, rules, regulations, orders, notices, directions, consents or permissions made under that law; and shall be construed as referring to any law which replaces, re-enacts, amends or consolidates such law (with or without modification) at any time.

2. SCOPE OF SERVICES

2.1 Under this Agreement, Shipzee agrees to provide the Services to the Merchant on its Platform, which shall include automated shipping, returns and refunds, product tracking and notification services in relation to the goods/products sold by the Merchant. It is however clarified that Shipzee is a mere logistics aggregator providing automated Services to the Merchant and hold no direct role and responsibility in the actual delivery and shipment of Merchant's goods / products. The Merchant acknowledges and agrees that the fulfillment or actual delivery of the goods/products shall be undertaken by the Logistics Partners of Shipzee.

2.2 The Merchant agrees that the shipments shall be picked up by the Logistics Partner from the Merchants locations as communicated to Shipzee through the Merchant account on the Platform. The Parties further agree that the tracking number and Logistics Partner would be assigned by an automated process through the Platform based on the pickup and delivery pin code and type of shipment.

2.3 The Merchant shall provide / display prominently on the shipping label of the package, full details of the order number, consignee details, product details, return address i.e. the shipping address and the gross value and collectable value (net value) to be collected in case of cash on delivery ("COD") shipments. Shipzee shall enable the Merchant to take a print of the shipping label with all the details and the same shall be pasted on the package before the handover to the Logistics Partner happens.

2.4 The Merchant agrees that the Logistics Partner, at the time of receiving the shipments from the Merchant, will use 'Air Waybill' provided to them by Shipzee. It is agreed between the Parties hereto that at all times, the 'Consignor/ Shipper' in the 'Air Waybill' shall be the Merchant who is shipping the goods. It is expressly understood that Shipzee's liability, if any, and to the extent agreed herein, shall extend only to the Merchant. The Merchant shall be fully liable to its Customers and neither Shipzee nor its Logistics Partner, shall have any direct or indirect connection/ relationship or responsibility/obligation towards the Customers, in any manner whatsoever.

2.5 The Merchant agrees and acknowledges that Shipzee through its Logistics Partners are not performing any activity or job or providing service on behalf of the Merchant which is tantamount to seller or retailer and or stockiest / distributor. The complete activity performed by Shipzee under this Agreement is based on specific instructions given by the Merchant as part of the scope defined and from time to time.

3. MERCHANT OBLIGATIONS

3.1 The Merchant agrees that it shall be responsible for handing over the product to the Logistic Partners in a proper; tamper proof and damage proof packing of their brand to avoid transit damages and environmental impact / damage on the products along with the order form pasted on the shipment.

3.2 The Merchant agrees that it shall use good quality tapes, duly engraved with their trademark/name, etc. and not generic tapes for the packaging/sealing of the goods/shipments shall be used. In case generic (brown/plain) tapes are used in the packaging/sealing of the goods/shipments, Shipzee shall have no responsibility of any kind, in case of pilferage / damaged / alteration / tapering / leakage etc. of the goods / shipments. In such a scenario, the entire damages and losses arising under this section shall be solely borne by the Merchant.

3.3 The Merchant should properly paste and insert the invoice, in and on the package. In case of COD shipment, the Merchant shall also attach the 'COD order-form' along with the shipment.

3.4 The Merchant agrees that the Services only apply to Merchants location already registered on the Platform. For avoidance of doubt, it is clarified that all Merchant goods / products will be picked by the Logistic Partner from only such locations which have been registered by the Merchant on the Platform.

3.5 The Merchant shall be ready with the packed order when designated personnel of the Logistic Partner comes to receive the goods / product. All pick-ups should be logged before the cut-off time as directed by the customer support team of Shipzee, and no pick up beyond the cut-off time communicated to the Merchant shall be done by the Logistics Partner. The Merchant agrees that they shall contact the designated personnel of the Logistics Partner for the pickup arrangements if the Merchant fails to handover the good / products to the Logistic Partner within the cut-off time.

3.6 The Merchant shall collect receipt(s) of the signed copy of the shipping manifest; which shall be deemed as the proof of handover of shipment to the Logistic Partner.

3.7 The Merchant shall ensure that the correct and complete description of the destination / address of the Customer as well as all the relevant information / details and documents (including but not limited to the e-way bill number and valid GST invoice) are mentioned / provided by the Merchant while booking / handing over the good / products for shipment. In case any incomplete / incorrect information or documents are provided by the Merchant, the shipment may be returned from origin and the shipping charges (both forward and RTO charges) shall be levied, in addition to any damages / Taxes imposed by the statutory authorities, if any, in the transit of such shipment. Such charges shall be irreversible and no claim for the return of such charges shall be entertained by Shipzee. Further, in case of breach of this clause, Shipzee would inter-alia have the right to levy damages/charges (along with the applicable GST amount) on the Merchant of Rs. 2,000 per shipment or of such other amount as decided by Shipzee in its sole discretion.

3.8 The Merchant will be solely responsible to comply with all statutory requirements (State and Central Laws/Statutes) applicable in relation to booking and sale of the shipments carried and delivered by the Logistics Partners of Shipzee in pursuance of this Agreement.

3.9 The Merchant shall strictly use the automated system through its account on the Platform for generating the pickup and move the shipment only on the Airway Bill number generated by Shipzee. In addition, the Merchant shall not book / ship two or more shipments against a single AWB number or send multi packet shipments, and any breach of this condition by the Merchant (whether intentional breach or not) shall give right to Shipzee to claim the concerned expenses (including the freight amount of all the shipments) and liquidated damages of Rs. 1,000 per incident/shipment (and applicable GST amount) from the Merchant. However, this restriction shall not be applicable if the Merchant has activated MPS (multi packet shipments) services with Shipzee.

3.10 The Merchant agrees that in the event a shipment comes back as RTO (return to origin) due to failure of COD, failed delivery, or any other reason whatsoever, it is the Merchant's responsibility to change the status of the order to RTO received and intimate Shipzee in with the Reverse Airway bill number. The Merchant agrees to make payments as applicable.

3.11 In case of damaged / pilferage / tempered / pressed / leaked shipment, receiver shall mention negative remarks on point of destination (POD) copy to get claim for the shipment. In the absence of any negative remarks on POD copy clearly stating such damage/pilferage/tampering/pressing/leakage, no claim shall be entertained by Shipzee at any point of time.

3.12 Claims for any kind of damage/pilferage/tampering/leakage of the booked articles/goods/shipment shall be entertained only if the outer packaging done by the shipper is damaged/altered/tampered. However, if the outer packaging done by the shipper is intact and not tampered with, in such a case, no claim(s) for any damage / pilferage / tampering / leakage shall be entertained by Shipzee.

3.13 Shipzee shall not entertain any dispute(s) regarding damage/pilferage/tampering/leakage/non- receipt of delivery/fake delivery shall be entertained by Shipzee, after a period of 48 Hours from the receipt/delivery of the said article/goods/shipment.

4. PROHIBITED GOODS

4.1. The Merchant hereby agrees that it shall not book / handover any good/shipment which is banned, restricted, illegal, prohibited, stolen or infringing of any third party rights, or which contains any cash, jewelry (excluding artificial jewelry), gold, silver, diamond, platinum, other precious metals, precious stones, currency, bullion, and financial and security instruments, or any reactive, hazardous or dangerous items/goods which are in breach of any Applicable Law or of the packaging / transportation guidelines of the concerned Logistic Partner; in which cases Shipzee and/or the Logistic Partner shall not be liable for the delivery of any such goods / products. Without prejudice to the generality of the aforesaid, an indicative list of the dangerous and restrictive goods is set out as ***Annexure A*** of this Agreement.

4.2. In the event, the Merchant hands over or provides the aforesaid goods / products to the Logistic Partner, then Shipzee or its Logistic Partner shall not be responsible and liable for any loss, damage, theft or misappropriation of such products even if Shipzee or Logistic Partner has the knowledge of the same and even if such loss, damage, theft or misappropriation is caused due to any reason attributable to Shipzee or its Logistic Partner.

4.3. The Merchant undertakes that in the event any article/good/shipment booked/handed over by it falls within the category of the banned/illegal items or those provided in ***Annexure A*** (including reactive, hazardous and dangerous goods which are in breach of any Applicable Law or of any packaging/transportation guidelines of the concerned Logistic Partner), then the Merchant agrees to indemnify Shipzee and its Logistic Partner for any and all issues, losses and damages arising pursuant thereto.

4.4. In addition, the Merchant shall not handover counterfeit or fraud products/shipments to Logistic Partner, failure of which will attract the consequences mentioned in ***Annexure A*** of the Agreement.

5. RETURNS / RTO OF THE PRODUCTS

5.1. Shipzee reserves the right to return to the Merchant, the goods/products which are not accepted by the Customer for any reason whatsoever, at the location(s) as specified by the Merchant.

5.2. Shipzee reserves the right to apply the RTO (return to origin) charges same as the agreed shipping Rates.

5.3. The Merchant shall agree that the returns will be initiated by the Logistics Partners for all goods/products which are not accepted by the Customer for any reason whatsoever. The Merchant will ensure that such products are accepted at the location(s) specified by them and share the Airway bill number against which the shipment returned to the Merchant.

5.4. In case of non-acceptance of the RTO shipment by the Merchant or in case the Merchant is not reachable for RTO shipment, Shipzee reserves the right to levy suitable demurrage / incidental charges for extended storage of such goods/products for any period exceeding 7 (seven) days from initiation of the returns and up to 30 (thirty) days from such date of return. In case of non-acceptance of the products beyond 30 (thirty) days, Shipzee has the right to dispose such products and the Merchant will forfeit all claims in this regard towards the Shipzee and will also be required to pay charges for disposing the product, along with all other charges (including demurrage/incidental charges).

6. FEES AND PAYMENT

6.1 Subject to the provisions of this Agreement, the Merchant will pay Shipzee the service fees, and such other amounts set forth in *Annexure B* of this Agreement.

6.2 Shipzee may add new services for additional fees and charges or may proactively amend the service fees and charges for existing Services, at any time in its sole discretion, which will be communicated to the Merchant in advance.

6.3 If the Merchant purchases any subscription based paid service, the Merchant authorize Shipzee to charge applicable fees at the beginning of every subscription period or at such intervals as applicable to the said service, and the Merchant authorizes Shipzee to make such modification to the fee structure as required and also agree to abide by such modified fee structure.

6.4 The Merchant agrees to pay all subscription fees, service fees and other fees applicable to the Merchant's use of Services or any other services which are beyond the scope of the Services and/or this Agreement, and the Merchant shall not (directly or indirectly) circumvent the fee structure.

6.5 The Merchant is solely responsible for payment of all taxes, legal compliances, and statutory registrations and reporting under Applicable Law. Shipzee is in no way responsible for any of the Merchant's taxes or legal or statutory compliances. All fees shall be exclusive of taxes, and Goods and Service tax and other statutory taxes, as applicable, shall be levied on every purchase/Service.

6.6 The payment process would be considered to be complete only on receipt of full fees and all other charges (as payable) into Shipzee's designated bank account.

6.7 Shipzee shall raise an invoice for the Services and the freight amount (if payable) twice in a calendar month (preferably in mid of the month and end of the month). The invoice shall be available on the billing / payments section of the Application. The total due amount of both the invoices shall be paid before or by **10th** of **every month**

6.8 If the Merchant fails to pay the full invoice amount in accordance with the time period mentioned above, Shipzee will have the right to: (i) retain the amounts received from the end customer of the Merchant through the cash on delivery method ("**COD Amount**"), and/or (ii) retain the custody of the shipments of the Merchant which are in the possession of Shipzee's Logistics Partner(s), and/or
(iii) levy an interest of 18% per annum from the due date of payment, till such time that the Merchant makes entire payment towards the invoice; and/or (iv) forfeit the security deposit amount of the Merchant (if any) lying with Shizee. Without being prejudice to the above, the Merchant hereby

agrees that it shall become liable to pay the freight charges (both forward and RTO charges) as soon as a shipment is picked up or is RTO initiated by the Logistic Partner, and that Shipzee shall have a right to recover such freight charges from the Merchant (for all the shipments which have been picked-up/shipped/RTO however which have not been invoiced) as per the various modes agreed under this Agreement, including but not limited to retaining the COD Amounts for the shipments of the Merchant.

6.9 In the event the Merchant closes its account with Shipzee, or this Agreement expires or is terminated, Shipzee will deduct the Fees and the freight amounts due to it from the Merchant, from the COD Amount. Shipzee shall, thereafter, remit the remaining COD Amount after such deduction, within 10 (ten) days from the date of such closure/expiration/termination, subject to reconciliation and completion of all the shipments and transactions made on the Platform pertaining to the Merchant. In the event, the COD Amount falls short of the outstanding amount payable by the Merchant, the Merchant shall within 5 (five) days from the date of such closure/expiration/termination pay the outstanding amount to Shipzee, and until the payment of the entire outstanding amount, Shipzee shall retain the custody of the shipments of the Merchant which are in the possession of Logistics Partner(s). In the event of any delay in payment of outstanding amount by the Merchant (as required under this clause), Shipzee shall have a right to levy an interest of 18% per annum on the outstanding amount from the due date of payment till the date of actual payment and/or to forfeit the security deposit amount of the Merchant (if any) lying with Shipzee.

6.10 The Merchant agrees that in case of shipments booked under COD, the Logistics Partner shall collect cash, as per the instructions of Shipzee from the consignee as per the details mentioned on the COD order form and remit/reimburse the amount to Shipzee which then forthwith would be reimbursed to the Merchant. However, Shipzee shall not be held liable in case the COD Amount has been delayed or misplaced by the Logistic Partner. The Merchant shall seek its claim, loss or any damages suffered from the Logistic Partner directly, and in no way shall recover from Shipzee or hold Shipzee liable for the same. In this regard, the Merchant agrees that Shipzee shall have the right to deduct the freight charges from the COD Amounts received by Shipzee, and then remit/reimburse the balance amount to the Merchant.

6.11 Shipzee may, from time to time, in its sole discretion, provide/allocate a credit limit to the Merchant for the Services, which can be used by the Merchant within a specified time period. In this regard, the Merchant hereby acknowledges and agrees to pay the service fees and all other amounts (payable by it pursuant to this Agreement), and in the event the Merchant fails to timely pay the same, Shipzee shall have an unconditional and irrevocable right, in addition to other rights and remedies available under this Agreement elsewhere, Applicable Law or otherwise, to recover the unpaid fees and amounts from the Merchant *inter alia* by way of: (a) retaining the COD Amounts; and/or (b) retaining the custody of the shipments of the Merchant which are in the possession of the Logistics Partner(s); and/or (c) forfeit the security deposit amount of the Merchant (if any) lying with Shipzee.

6.12 Shipzee reserves the right to modify the fee structure by providing a notice, either on the Merchants dashboard or through email to the authorized representative of the Merchant, which shall be considered as valid and agreed communication. Upon the Merchant not communicating any negative response/objection to Shipzee to such notice, Shipzee shall apply the modified Fee structure.

6.13 The Merchant shall provide details regarding its bank account, credit card number and other such financial information. The Merchants shall be responsible to maintain the confidentiality of such information provided by The Merchants.

7. LIABILITY

Shipzee shall not be responsible or liable in any manner to the Merchants for any losses, damage, injuries or expenses incurred by the Merchants as a result of any action taken by Shipzee, where the Merchant has consented for the same.

7.1 Shipzee does not provide or make any representation, warranty or guaranty, express or implied about the Services. Shipzee does not verify any content or information provided by the Merchants and to the fullest extent permitted by law disclaims all liability arising out of the Merchant's use or reliance upon the Services.

7.2 The Services of Shipzee may be linked to the services of third parties, affiliates and business partners. Shipzee has no control over, and not liable or responsible for content, accuracy, validity, reliability, quality of such services or made available by/through their Services.

7.3 Notwithstanding anything contrary provided in this Agreement, in no event, including but not limited to negligence, shall Shipzee, or any of its directors, officers, employees, agents or content or service providers (collectively, the "**Protected Entities**") be liable for any direct, indirect, special or incidental damages arising from, or directly or indirectly related to, the use of, or the inability to use, the Services or the content, materials and functions related thereto, the Merchant's provision of information via the Services, lost business or lost sales, even if such Protected Entity has been advised of the possibility of such damages. In no event shall the total aggregate liability of the Protected Entities to the Merchant for all damages, losses, and causes of action (whether in contract or tort, including, but not limited to, negligence or otherwise) arising from the terms and conditions of this Agreement or the Merchant's use of the Services exceed, in the aggregate Rs. 1,000 per shipment.

7.4 In no event shall the Protected Entities be liable for failure on the part of the Logistics Partner to provide the agreed Services.

7.5 The Protected Entities shall not be liable for any act or omission of any other person/ entity furnishing a portion of the Service, or from any act or omission of a third party, including those vendors participating in the Services, or for any unauthorized interception of the Merchant communications or other breaches of privacy attributable in part to the acts or omissions of the Merchant or third parties, or for damages associated with the Service, or equipment that it does not furnish, or for damages that result from the operation of the Merchant provided systems, equipment, facilities or services that are interconnected with the Service.

7.6 Shipzee shall be, in no manner liable to remit the COD Amount that is to be received as payment by the Merchant in case of forcible snatching of the delivery package. Such incidents/cases shall be the sole responsibility of the Merchant and the Merchant is liable to initiate actions against their Customers to resolve such incidents, if any, on its own, including but not limited to legal processes.

7.7 The Merchant undertakes to resolve the disputes raised, if any, by the Customer within a period of 24 (twenty-four) hours from the raising of such dispute(s). Failure to do so shall enable/authorize Shipzee to hold the COD remittance, till the time such dispute(s) is rectified by the Merchant.

8. DISCLAIMER OF LIABILITY

8.1 Notwithstanding anything contrary contained in this Agreement, the maximum liability of Shipzee per shipment will be Rs. 1,000 in case of a claim under this Agreement (due to any reason including damage, lost, theft) by the Merchant, provided that such claim is raised by the Merchant within the timelines specified under this Agreement and, in any event, not later than 15 (fifteen) days from the shipment pick up date - failing which the Merchant forfeits and waves its rights for such claim. Any claims by the Merchant should be submitted within the specified time period along with the copy of the signed shipping manifest.

The Merchant agrees that all claims relating to: (i) damage to the shipment must be notified to Shipzee in writing within 48 (forty-eight) hours of the delivery of shipment; and (ii) loss/theft of the shipment must be notified to Shipzee in writing within 15 (fifteen) days of the shipment pickup date.

8.2 The claim amount already credited to the Merchant on account of incorrect status or shipment shall be refunded by the Merchant (by way of deduction from Merchant's wallet, future COD Amounts or otherwise) in case the concerned shipment has been traced and delivered/RTO delivered to the Merchant.

8.3 It is hereby informed and agreed that Shipzee and/or its Logistic Partner(s) shall not be responsible for any damage to the shipments which include liquid or fragile items/products (including but not limited to liquid cosmetic, beauty products and glass items).

9. GENERAL REPRESENTATIONS AND WARRANTIES

9.1 Each Party represents and warrants to the other Party that:

(a) They are duly organized, validly existing and in good standing under the laws of India.

(b) It has all necessary rights, powers and authority to enter into and perform this Agreement.

(c) The entrance and performance of this Agreement by it shall not violate any Applicable Law and shall not breach any agreement, covenant, court order, judgment or decree to which such Party or by which it is bound.

(d) The execution delivery and performance of this Agreement shall not violate any Applicable Law, licensing requirement, order, writ, injunction or decree of any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority by which it is bound or by which any of its properties or assets are bound.

10. INDEMNITY

10.1 The Merchant ("**Indemnifying Party**") hereby agrees to indemnify, defend and hold Shipzee, its Logistic Partners and the affiliates, officers, directors, employees, contractors, sub-contractors, consultants, licensors, other third party service providers, agents and representatives of Shipzee ("**Indemnified Party**") harmless from and against claims, demands, actions, liabilities, costs, interest, damages and expenses of any nature whatsoever (including all legal and other costs, charges and expenses) incurred or suffered by the Indemnified Party, on account of: (a) Indemnifying Party's access to or use of Services; (b) violation of this Agreement or any terms of use of the Services by the Indemnifying Party (and/or its officers, directors and employees); (c) violation of Applicable Law by the Indemnifying Party (and/or its officers, directors and employees); (d) wrongful or negligent act or omission of the Indemnifying Party (and/or its officers, directors and employees); (e) any third party action or claim made against the Indemnified Party, by reason of any actions undertaken by the Indemnifying Party (and/or its officers, directors and employees); and (**f**) any duties, taxes, octroi, cess, clearance charges and any other charge/levy by whatsoever name called, levied on the shipments.

10.2 The Merchant undertakes to fully indemnify and hold the Logistic Partners and Indemnified Party harmless in case of any breach of any term or condition of this Agreement, or breach of any Applicable Law, by the Merchant (and/or its officers, directors and employees) and / or by its Customers.

10.3 Shipzee will notify the Merchant promptly of any such claim, loss, liability, or demand, and in addition to the Merchant foregoing obligations, the Merchant agrees to provide Shipzee with all reasonable assistance, at the Merchant's expense, in defending any such claim, loss, liability, damage, or cost.

11. COMPLIANCE WITH LAWS

Each Party shall at all times and at its/his/her own expense: (a) strictly comply with all Applicable Laws, now or hereafter in effect, relating to its/his/her performance of this Agreement; (b) pay all fees and other charges required by such Applicable Law; and (c) maintain in full force and effect all licenses, permits, authorizations, registrations and qualification from any authority to the extent necessary to perform its obligations hereunder.

12. INTELLECTUAL PROPERTY RIGHTS

12.1. The Merchant acknowledges that the Intellectual Property rights in all the materials that have been developed by Shipzee and provided to the Merchant, shall always vest with Shipzee.

12.2. The Merchant hereby agrees and acknowledges that the Intellectual Property rights in all the material created and developed for the performance of Services during the term of this Agreement, shall vest with Shipzee**.**

13. TERM AND TERMINATION

The Merchant can request for termination of the Agreement at any time with a 30 (thirty) day prior written notice subject to the provisions in the annexure for the Services undertaken. During this notice period, Shipzee will investigate and ascertain the fulfilment of any ongoing Services and pending dues related to fees or any other amount payable by the Merchant. The Merchant shall be obligated to clear any dues with Shipzee for any of its Services which the Merchant has availed in accordance with this Agreement. Shipzee shall not be liable to the Merchant or any third party for any termination of the Merchant's access to the Services.

- Shipzee reserves the right to immediately terminate this Agreement in cases where:
    - the Merchant breaches any terms and conditions of this Agreement;
    - Shipzee believes in its sole discretion that the Merchant's actions may cause legal liability for the Merchant or for Shipzee or are contrary to the terms of use of the Services, or terms of this Agreement; or
    - Shipzee deems fit for its own convenience, without providing any reason.

14. GOVERNING LAW AND DISPUTE RESOLUTION

I. This Agreement shall be governed by the laws of India and subject to the Clause below, the courts of Delhi, New Delhi shall have exclusive jurisdiction to determine any disputes arising out of, under, or in relation, to the provisions of this Agreement.

II. Any dispute arising under this Agreement shall be settled by arbitration to be held in Delhi, New Delhi in accordance with the (Indian) Arbitration and Conciliation Act, 1996, in the English language, and shall be heard and determined by a sole arbitrator mutually appointed by the Parties. In case the Parties are not able to mutually choose an arbitrator within 30 (thirty) days from the date of the notice of a dispute, the dispute shall be referred to an arbitration panel consisting of 3 (three) members where each Party shall appoint 1 (one) arbitrator each and the arbitrators so appointed shall appoint the third arbitrator (who shall be the presiding arbitrator).

III. The decision of the arbitrator(s) shall be final, conclusive and binding on the Parties. Notwithstanding the foregoing, nothing contained herein shall be deemed to prevent either Party from seeking and obtaining injunctive and/or equitable relief from any court of competent jurisdiction.

15. SEVERABILITY

The invalidity or unenforceability of any provision in this Agreement shall in no way affect the validity or enforceability of any other provision herein. In the event of the invalidity or unenforceability of any provision of this Agreement, the Parties will immediately negotiate in good faith to replace such a provision with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces.

16. FORCE MAJEURE

I. Neither Party shall be liable for any failure or delay in performance of any obligation, under this Agreement to the extent that such failure or delay is due to a Force Majeure Event. The Party having any such cause shall promptly notify the other Party in writing of the nature of such cause and the expected delay.

II. If, however, it is not feasible for a Party to prevent the occurrence of the Force Majeure Event as a result of which that Party is prevented from performing its obligation for more than 30 (thirty) days due to such Force Majeure Event ("**Aggrieved Party**"), the other Party may decide to release the Aggrieved Party from performing its obligation hereunder or may modify the relevant provisions of this Agreement affected by the Force Majeure Event so long as the Force Majeure Event continues, in order to enable the Aggrieved Party to perform its other obligations hereunder as so modified. However, in the event, Force Majeure Event continues for a period of more than 60 (sixty) days, the Aggrieved Party may terminate this Agreement with a written notice to the other Party.

17. ENTIRE AGREEMENT, ASSIGNMENT, SURVIVAL AND AMENDMENT

a. This Agreement, the annexures and any other documents entered into or delivered as contemplated in this Agreement herein sets out the entire agreement and understanding between the Parties with respect to the subject matter hereof. Unless otherwise decided by Shipzee, the annexures containing specific terms of use supersedes all general terms of the Agreement, previous letters of intent, and heads of terms, prior discussions and correspondence exchanged between the Parties in connection with the Agreement referred to herein.

b. This Agreement and the rights and obligations herein shall not be assigned by the Merchant, without the written consent of Shipzee.

c. The provisions which are by their nature, intended to survive the termination of this Agreement, shall survive the termination of this Agreement.

d. This Agreement may be amended only with the written consent of both Parties. Any amendment or waiver effected in accordance with this Clause shall be binding upon both Parties.

18. NO PARTNERSHIP OR AGENCY

Nothing in this Agreement (or any of the arrangements contemplated herein) shall be deemed to constitute a partnership between the Parties hereto, nor, except as may be expressly provided herein, constitute any Party as the agent of another Party for any purpose, or entitle any Party to commit or bind another Party in any manner.

19. WAIVERS AND REMEDIES

No failure or delay by the Parties in exercising any right or remedy provided by law under or pursuant to this Agreement shall impair such right or remedy or operate or be construed as a waiver or variation of it or preclude its exercise at any subsequent time and no single or partial exercise of any such right or remedy shall preclude any other or further exercise of it or the exercise of any other right or remedy. The rights and remedies of the Parties under or pursuant to this Agreement are cumulative, may be exercised as often as such Party considers appropriate and are in addition to its rights and remedies under the general laws of India.

20. INDIRECT AND CONSEQUENTIAL LOSSES

Save as expressly provided otherwise in this Agreement, neither Party shall be liable under or in connection with this Agreement for any loss of income, loss of profits or loss of contracts, or for any indirect or consequential loss or damage of any kind, in each case howsoever arising and whether caused by tort (including negligence), breach of contract or otherwise.

21. CONTACT INFORMATION

(a) The Merchant hereby agrees and provides his consent to receive communications, correspondences, updates, notifications, etc. from Shipzee through email, SMS, Whatsapp and any other mode as agreed by the Parties from time to time. The Parties agree that the said communications, correspondences, updates, notifications, etc. will be legally binding on them.

(b) Except as may be otherwise provided herein, all notices, requests, waivers and other communications ("**Notices**") shall be deemed to be delivered as provided herein: (a) if delivered to the addressee by hand: upon the Notice being acknowledged by written receipt by the addressee; (b) if sent by facsimile: upon the receipt of transmission report confirming transmission; (c) if sent via an overnight courier: upon receipt (evidenced by proof of delivery). The Notices shall be addressed to the Parties at the contact details provided below. Each Party shall promptly inform the other Parties of any change to its contact details.

(c) Notwithstanding anything provided contrary in this Agreement, the Merchant hereby agrees, provides his consent and further authorizes Shipzee to share his relevant details and documents (including but not limited to business/registered name(s), phone number(s), address(es), email-id(s), bank account details, KYC documents, etc.) with the concerned judicial authority, court, police, complainant, etc. (as the case may be) in the event of a complaint been filed against the Merchant or dispute been raised in relation to the shipment(s) made by the Merchant.

THE PARTIES HERETO HAVE DULY EXECUTED THIS AGREEMENT AS OF THE DATE AND YEAR HEREINABOVE FIRST WRITTEN.

For and on behalf of **Prosavvy Luxuries Private Limited** Name: Title:	For and on behalf of **Merchant** Name: Title

ANNEXURE A

Indicative List of Prohibited/Restricted Items

Dangerous Goods:

(a) Oil-based paint and thinners (flammable liquids)
(b) Industrial solvents
(c) Insecticides, garden chemicals (fertilizers, poisons)
(d) Lithium batteries
(e) Magnetized materials
(f) Machinery (chain saws, outboard engines containing fuel or that have contained fuel)
(g) Fuel for camp stoves, lanterns, torches or heating elements
(h) Automobile batteries
(i) Infectious substances
(j) Any compound, liquid or gas that has toxic characteristics
(k) Bleach
(l) Flammable adhesives
(m) Liquid Shipments
(n) Arms and ammunitions (including air guns)
(o) Dry ice (Carbon Dioxide, Solid)

Any Aerosols, liquids and/or powders or any other flammable substances classified as Dangerous Goods for transport by Air

(p) All goods prohibited by the airport authority of India.

Restricted Items:

(a) Precious stones, gems and jewellery
(b) Uncrossed (bearer) drafts / cheque, currency and coins
(c) Poison
(d) Firearms, explosives and military equipment.
(e) Hazardous and radioactive material
(f) liquor
(g) Any pornographic material
(h) Hazardous chemical items

Counterfeit or Fraud Products/Shipments:

It is the policy of Shipzee to conduct all business activities in compliance with the rules and regulations applicable to the industry and laws of India, with the highest ethical standards. In this regard, Shipzee has a zero-tolerance policy with respect to counterfeit or fraud products/shipments (including products/shipments which are misrepresented in their origin or quality, or which are fake, cloned, duplicate or likewise products/shipments).

Accordingly, in the event Shipzee believes that the Merchant or any of their Customer are shipping/selling (or have shipped) counterfeit or fraud product/shipment (including but not limited to any counterfeit electronic product, not limited to mobile phones, smart watches and likewise products), Shipzee would inter-alia have the right:

(a) to seize such product/shipment,

(b) to report the incident to the appropriate government authority/police station,

(c) to blacklist the Merchant from trading/doing business with Shipzee,

(d) to levy liquidated damages equivalent to 5x of the value of the counterfeit/fraud shipment, and applicable GST amount on said damages, on account of estimated legal expenses which will be spent by Shipzee or actual expenses in case the actual amount exceeds the above threshold value of liquidated damages as mentioned under this clause.

(e) to block/forfeit the entire COD Amount of the Merchant or their Customer lying with Shipzee/its Logistic Partner,

(f) to seize all the products of the Merchant lying with Shipzee or its Logistic Partner and also to dispose such products (without any intimation to the Merchant) after a period of 90 (ninety) days from the date of seizure.

(g) The sellers are accountable for resolving any buyer concerns within 48 hours. If the sellers are unable to resolve the issues, Shipzee reserves the right to address and settle the matter, and deduct an amount equal to twice the shipment value from the sellers' accounts.

Disputed Shipments/Cases:

Shipzee, in its sole discretion, shall have the right to levy damages/charges (*along with the applicable GST amount*) on the Merchant in relation to shipments/cases which have been disputed by the Logistic Partner, the Merchant Customers or by any third party (including any governmental authority/department). The amount of said damages/charges shall be decided by Shipzee in its sole discretion and may vary from case to case.

For and on behalf of **Prosavvy Luxuries Private Limited** Name: Title:	For and on behalf of **Merchant** Name: Title

ANNEXURE B

Service Fee

(a) The Merchant hereby agrees that Shipzee shall charge applicable shipping rate and freight charges which will be as per the current prevailing rate mentioned on the price calculator link which will be on the Merchants account on the Platform. Freight charges will be calculated as per dead / dry weight or volumetric weight, whichever is higher. The freight price may vary from time to time subject to fuel surcharges and the change in freight rates of different Logistic Partners.

(b) Shipzee reserves the right to levy a COD charge against all shipments in the nature of cash on deliveries. The COD charges shall be calculated, over and above the service charge and freight charges, which will either be a percentage of the order value or a fixed COD charge, whichever is higher and which will vary depending on the choice of Logistic Partner chosen by the Merchant.

(c) Goods and Service tax and other taxes are applicable as per taxation law.

(d) Dead/Dry weight or volumetric weight whichever is higher should be taken while calculating the rates.

(e) In case the declared weight differs and is less than the actual weight, then shipping charges will be revised to actual weight. The Merchant will be notified regarding such discrepancy in the weight (on the dashboard) and will be given 7 (seven) working days' notice to either accept or reject the updated weight. In the event, the Merchant accepts the updated weight, the same will get billed and if the Merchant rejects the updated weight the same will not get billed until the matter is rectified/resolved. Further, in case the Merchant does not accept or reject the updated weight, the same will be auto accepted in 7 (seven) working days' time period.

(f) Remittance of COD amount would be made every week.

The remittance of the COD Amount will be made within 7 (seven) days from the delivery date of the concerned shipment to the Customer. However, the said COD Amount will not be paid or will have to be refunded by the Merchant (if already paid) for the shipments which were originally booked on COD, however which were subsequently modified.

In case the COD Amount which is already remitted to the Merchant due to wrong status (delivered) updated by Logistic Partner, the same amount shall be deducted from future COD payments. Further, in the event Shipzee is not able to remit the COD Amount to the Merchant within a period of 365 days from the due date, due to any reason which is not attributable to Shipzee (including incorrect bank details provided by the Merchant), then the Merchant hereby agrees to waive all its rights and claims against Shipzee and its Logistics Partners arising out of or in relation to non-payment of the COD Amount and Shipzee shall have an unconditional right to forfeit such unclaimed COD Amount after the expiry of said 365 days. The party of the second part shall maintain the average volume of shipments on a weekly basis in a proper manner. Furthermore, there shall be no outstanding payments pending at the end of the second party.

(g) <u>Said To Contain Basis & Inspection</u>: It is expressly understood by and between the Parties that all products agreed to be delivered by Shipzee through its Logistics Partners are on "SAID TO CONTAIN BASIS" i.e. Shipzee or its Logistics Partners shall be under no obligation and is not expected to verify the description and contents of the products declared by the Merchant on the docket and as such, the Merchant shall undertake and ensure to make proper, true, fair, correct and factual declaration on the docket regarding description and value of products. Further, Shipzee is not responsible in any way whatsoever for the merchantability of the products.

Terms of Payment for Prepaid Accounts

(a) The Merchant shall agree to deposit an amount in their respective account on the Platform to use the Services as per the prepaid model.

(b) The Merchant shall agree that with the shipment weight, it will automatically get deducted from the Merchants credit weight. As per the norms of the Logistic Partner, the Merchant will be charged for a minimum of 500 grams (or in multiples) for air shipping. Please note that the weight charges applied by the Logistic Partners may differ but however such charges shall be adjusted in/from the Merchants wallet limit on their Shipzee account after pick up of the shipment.

(c) Shipzee shall issue an invoice which will get auto adjusted (if applicable) against the credit in the Merchants account in the following conditions:

If the invoice amount is more than the credit available in the Merchant account: The Merchant shall agree that in case where the invoice amount is more than the credit in their account, the Merchant shall only be able to place an order for shipment after crediting their account with requisite value required to match the invoice amount.

(i) If the invoice amount is less than the credit available in the Merchant account: The Merchant shall agree that in case where the invoice amount raised is less than the credit in their account, the freight invoice amount will be automatically adjusted from their credit (if not already adjusted) and shall be marked as paid. If as on the date of issuance of the invoice, freight invoice amount has already been adjusted from the credit in their account, the invoice shall be generated with marked as paid.

(d) The Merchant shall agree that it will be their responsibility to verify the invoices and inform Shipzee within 7 (seven) working days in case of any disputes regarding the contents of the invoice.

(e) For any claims by the Merchant like wrong freight being applied, Cash on Delivery missing, pilferage, in transit damage - the signed copy of the manifest against which the Logistic Partner received the shipment has to be submitted along with the claim request. Without the signed manifest, the request shall not be considered valid.

(f) If due to any reason (including but not limited to the reason of weight discrepancy), the balance amount of the Merchant in the Shipzee wallet becomes negative, then Shipzee shall *inter-alia* have the right to hold/retain the COD Amounts for the shipments of the Merchant.

For and on behalf of **Prosavvy Luxuries Private Limited** Name: Title:	For and on behalf of (Merchant) Name: Title